

SENATE FLOOR VERSION

February 19, 2025

SENATE BILL NO. 768

By: Bullard of the Senate

and

Shaw of the House

An Act relating to firearms; amending 21 O.S. 2021, Sections 1272 and 1277, which relate to unlawful carry of firearms; authorizing licensed first responders to carry while performing official duties; authorizing certain agreements; defining term; excluding voluntary first responders; updating statutory language and references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1272, is amended to read as follows:

Section 1272.

UNLAWFUL CARRY

A. Notwithstanding any other provision of law, it shall be unlawful for any person to carry upon or about his or her person, or in a purse or other container belonging to the person, any pistol, revolver, shotgun, or rifle, whether loaded or unloaded, or any blackjack, loaded cane, hand chain, metal knuckles, or any other

1 offensive weapon, whether such weapon be concealed or unconcealed,
2 except this section shall not prohibit:

3 1. The proper use of guns and knives for self-defense, hunting,
4 fishing, or educational or recreational purposes;

5 2. The carrying or use of weapons in a manner otherwise
6 permitted by statute or authorized by the Oklahoma Self-Defense Act;

7 3. The carrying, possession, and use of any weapon by a peace
8 officer or other person authorized by law to carry a weapon in the
9 performance of official duties and in compliance with the rules of
10 the employing agency;

11 4. The carrying, possession, and use of a handgun by a first
12 responder who possesses a valid handgun license issued pursuant to
13 the provisions of the Oklahoma Self-Defense Act and who is acting in
14 the course and scope of employment and in compliance with the rules
15 of the employing agency on any public or private property in this
16 state. For a first responder to carry, possess, or use a handgun on
17 trust land of a federally recognized Indian tribe, a political
18 subdivision may enter into intergovernmental cooperative agreements
19 with a federally recognized Indian tribe as authorized by Section
20 1221 of Title 74 of the Oklahoma Statutes. Any intergovernmental
21 cooperative agreement entered into between a political subdivision
22 and a federally recognized Indian tribe related to first responder
23 services shall be agreed upon before a first responder carries,
24 possesses, or uses a handgun on such trust land. As provided in

1 this paragraph, "first responder" means a firefighter or licensed
2 emergency medical personnel as defined in Section 1-2503 of Title 63
3 of the Oklahoma Statutes but shall not include a voluntary first
4 responder;

5 5. The carrying or use of weapons in a courthouse by a district
6 judge, associate district judge, or special district judge within
7 this state, who is in possession of a valid handgun license issued
8 pursuant to the provisions of the Oklahoma Self-Defense Act and
9 whose name appears on a list maintained by the Administrative
10 Director of the Courts;

11 ~~5.~~ 6. The carrying and use of firearms and other weapons
12 provided in this subsection when used for the purpose of living
13 history reenactment. For purposes of this paragraph, "living
14 history reenactment" means depiction of historical characters,
15 scenes, historical life, or events for entertainment, education, or
16 historical documentation through the wearing or use of period,
17 historical, antique, or vintage clothing, accessories, firearms,
18 weapons, and other implements of the historical period; or

19 ~~6.~~ 7. The transporting by vehicle on a public roadway or the
20 carrying of a firearm, concealed or unconcealed, loaded or unloaded,
21 by a person who is twenty-one (21) years of age or older or by a
22 person who is eighteen (18) years of age but not yet twenty-one (21)
23 years of age and the person is a member or veteran of the United
24 States Armed Forces, Reserves, or National Guard or was discharged

1 under honorable conditions from the United States Armed Forces,
2 Reserves, or National Guard, and the person is otherwise not
3 disqualified from the possession or purchase of a firearm under
4 state or federal law and is not carrying the firearm in furtherance
5 of a crime.

6 Except as provided in subsection B of Section 1283 of this
7 title, a person who has been convicted of any one of the following
8 offenses in this state or a violation of the equivalent law of
9 another state:

- 10 a. assault and battery pursuant to the provisions of
11 Section 644 of this title which caused serious
12 physical injury to the victim,
- 13 b. aggravated assault and battery pursuant to the
14 provisions of Section 646 of this title,
- 15 c. assault and battery that qualifies as domestic abuse
16 as defined in Section 644 of this title,
- 17 d. stalking pursuant to the provisions of Section 1173 of
18 this title,
- 19 e. a violation of an order issued under the Protection
20 from Domestic Abuse Act or a domestic abuse protection
21 order issued by another state, or
- 22 f. a violation relating to illegal drug use or possession
23 under the provisions of the Uniform Controlled
24 Dangerous Substances Act,

1 shall be prohibited from carrying a firearm under the provisions of
2 this ~~paragraph~~ subsection. Any person who carries a firearm in the
3 manner provided for in this ~~paragraph~~ subsection shall be prohibited
4 from carrying the firearm into any of the places prohibited in
5 subsection A of Section 1277 of this title or any other place
6 currently prohibited by law. Nothing in this section shall modify
7 or otherwise change where a person may legally carry a firearm.

8 B. Any person convicted of violating the foregoing provision
9 shall be guilty of a misdemeanor punishable as provided in Section
10 1276 of this title.

11 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1277, is
12 amended to read as follows:

13 Section 1277.

14 UNLAWFUL CARRY IN CERTAIN PLACES

15 A. It shall be unlawful for any person, including a person in
16 possession of a valid handgun license issued pursuant to the
17 provisions of the Oklahoma Self-Defense Act, to carry any concealed
18 or unconcealed firearm into any of the following places:

19 1. Any structure, building, or office space which is owned or
20 leased by a city, town, county, state, or federal governmental
21 authority for the purpose of conducting business with the public;

22 2. Any courthouse, courtroom, prison, jail, detention facility,
23 or any facility used to process, hold, or house arrested persons,
24 prisoners, or persons alleged delinquent or adjudicated delinquent,

1 except as provided in Section 21 of Title 57 of the Oklahoma
2 Statutes;

3 3. Any public or private elementary or public or private
4 secondary school, except as provided in subsections C and D of this
5 section;

6 4. Any publicly owned or operated sports arena or venue during
7 a professional sporting event, unless allowed by the event holder;

8 5. Any place where gambling is authorized by law, unless
9 allowed by the property owner;

10 6. Any other place specifically prohibited by law; and

11 7. Any property set aside by a county, city, town, public trust
12 with a county, city, or town as a beneficiary, or state governmental
13 authority for an event that is secured with minimum-security
14 provisions. For purposes of this paragraph, a minimum-security
15 provision consists of a location that is secured utilizing the
16 following:

17 a. a metallic-style security fence that is at least eight
18 (8) feet in height that encompasses the property and
19 is secured in such a way as to deter unauthorized
20 entry,

21 b. controlled access points staffed by a uniformed,
22 commissioned peace officer, and
23
24

1 c. a metal detector whereby persons walk or otherwise
2 travel with their property through or by the metal
3 detector.

4 B. It shall be lawful for a person to carry a concealed or
5 unconcealed firearm on the following properties:

6 1. Any property set aside for the use or parking of any
7 vehicle, whether attended or unattended, by a city, town, county,
8 state, or federal governmental authority;

9 2. Any property set aside for the use or parking of any
10 vehicle, whether attended or unattended, which is open to the
11 public, or by any entity engaged in gambling authorized by law;

12 3. Any property adjacent to a structure, building, or office
13 space in which concealed or unconcealed weapons are prohibited by
14 the provisions of this section;

15 4. Any property designated by a city, town, county, or state
16 governmental authority as a park, recreational area, wildlife
17 refuge, wildlife management area, or fairgrounds; provided, nothing
18 in this paragraph shall be construed to authorize any entry by a
19 person in possession of a concealed or unconcealed firearm into any
20 structure, building, office space, or event which is specifically
21 prohibited by the provisions of subsection A of this section;

22 5. Any property set aside by a public or private elementary or
23 secondary school for the use or parking of any vehicle, whether
24 attended or unattended; provided, however, the firearm shall be

1 stored and hidden from view in a locked motor vehicle when the motor
2 vehicle is left unattended on school property; and

3 6. Any public property set aside temporarily by a county, city,
4 town, public trust with a county, city, or town as a beneficiary, or
5 state governmental authority for the holder of an event permit that
6 is without minimum-security provisions, as such term is defined in
7 paragraph 7 of subsection A of this section; provided, the carry of
8 firearms within ~~said~~ such permitted event area shall be limited to
9 concealed carry of a handgun unless otherwise authorized by the
10 holder of the event permit.

11 Nothing contained in any provision of this subsection or
12 subsection C of this section shall be construed to authorize or
13 allow any person in control of any place described in subsection A
14 of this section to establish any policy or rule that has the effect
15 of prohibiting any person in lawful possession of a handgun license
16 or otherwise in lawful possession of a firearm from carrying or
17 possessing the firearm on the property described in this subsection.

18 C. A concealed or unconcealed weapon may be carried onto
19 private school property or in any school bus or vehicle used by any
20 private school for transportation of students or teachers by a
21 person who is licensed pursuant to the Oklahoma Self-Defense Act,
22 provided a policy has been adopted by the governing entity of the
23 private school that authorizes the carrying and possession of a
24 weapon on private school property or in any school bus or vehicle

1 used by a private school. Except for acts of gross negligence or
2 willful or wanton misconduct, a governing entity of a private school
3 that adopts a policy which authorizes the possession of a weapon on
4 private school property, a school bus or vehicle used by the private
5 school shall not be subject to liability for any injuries arising
6 from the adoption of the policy. The provisions of this subsection
7 shall not apply to claims pursuant to the Administrative Workers'
8 Compensation Act.

9 D. ~~Notwithstanding paragraph 3 of subsection A of this section,~~
10 ~~a~~ 1. A board of education of a school district may adopt a policy
11 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
12 authorize the carrying of a handgun onto school property by school
13 personnel specifically designated by the board of education,
14 provided such personnel either:

15 ~~1. Possess~~

16 a. possesses a valid armed security guard license as
17 provided for in Section 1750.1 et seq. of Title 59 of
18 the Oklahoma Statutes~~+~~1 or

19 ~~2. Hold~~

20 b. holds a valid reserve peace officer certification as
21 provided for in Section 3311 of Title 70 of the
22 Oklahoma Statutes.

23 2. A first responder, as defined in subparagraph 4 of
24 subsection A of Section 1272 of this title, acting in the course and

1 scope of employment who possesses a valid handgun license issued
2 pursuant to the provisions of the Oklahoma Self-Defense Act may
3 openly carry a handgun onto school property.

4 Nothing in this subsection shall be construed to restrict authority
5 granted elsewhere in law to carry firearms.

6 E. Notwithstanding the provisions of subsection A of this
7 section, on any property designated as a municipal zoo or park of
8 any size that is owned, leased, operated, or managed by:

9 1. A public trust created pursuant to the provisions of Section
10 176 of Title 60 of the Oklahoma Statutes; or

11 2. A nonprofit entity,
12 an individual shall be allowed to carry a concealed handgun but not
13 openly carry a handgun on the property. A first responder acting in
14 the course and scope of employment who possesses a valid handgun
15 license issued pursuant to the provisions of the Oklahoma Self-
16 Defense Act may openly carry a handgun onto such property.

17 F. Any person violating the provisions of paragraph 2 or 3 of
18 subsection A of this section shall, upon conviction, be guilty of a
19 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
20 Dollars (\$250.00). A person violating any other provision of
21 subsection A of this section may be denied entrance onto the
22 property or removed from the property. If the person refuses to
23 leave the property and a peace officer is summoned, the person may

1 be issued a citation for an amount not to exceed Two Hundred Fifty
2 Dollars (\$250.00) .

3 G. ~~No~~ Except for a first responder acting in the course and
4 scope of employment, no person in possession of a valid handgun
5 license issued pursuant to the provisions of the Oklahoma Self-
6 Defense Act or who is carrying or in possession of a firearm as
7 otherwise permitted by law or who is carrying or in possession of a
8 machete, blackjack, loaded cane, hand chain, or metal knuckles shall
9 be authorized to carry the firearm, machete, blackjack, loaded cane,
10 hand chain, or metal knuckles into or upon any college, university,
11 or technology center school property, except as provided in this
12 subsection. For purposes of this subsection, the following property
13 shall not be construed to be college, university, or technology
14 center school property:

15 1. Any property set aside for the use or parking of any motor
16 vehicle, whether attended or unattended, provided the firearm,
17 machete, blackjack, loaded cane, hand chain, or metal knuckles are
18 carried or stored as required by law and the firearm, machete,
19 blackjack, loaded cane, hand chain, or metal knuckles are not
20 removed from the motor vehicle without the prior consent of the
21 college or university president or technology center school
22 administrator while the vehicle is on any college, university, or
23 technology center school property;

1 2. Any property authorized for possession or use of firearms,
2 machetes, blackjacks, loaded canes, hand chains, or metal knuckles
3 by college, university, or technology center school policy; and

4 3. Any property authorized by the written consent of the
5 college or university president or technology center school
6 administrator, provided the written consent is carried with the
7 firearm, machete, blackjack, loaded cane, hand chain, or metal
8 knuckles and the valid handgun license while on college, university,
9 or technology center school property.

10 The college, university, or technology center school may notify
11 the Oklahoma State Bureau of Investigation within ten (10) days of a
12 violation of any provision of this subsection by a licensee. Upon
13 receipt of a written notification of violation, the Bureau shall
14 give a reasonable notice to the licensee and hold a hearing. At the
15 hearing, upon a determination that the licensee has violated any
16 provision of this subsection, the licensee may be subject to an
17 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may
18 have the handgun license suspended for three (3) months.

19 Nothing contained in any provision of this subsection shall be
20 construed to authorize or allow any college, university, or
21 technology center school to establish any policy or rule that has
22 the effect of prohibiting any person in lawful possession of a
23 handgun license or any person in lawful possession of a firearm,
24 machete, blackjack, loaded cane, hand chain, or metal knuckles from

1 possession of a firearm, machete, blackjack, loaded cane, hand
2 chain, or metal knuckles in places described in paragraphs 1, 2, and
3 3 of this subsection. Nothing contained in any provision of this
4 subsection shall be construed to limit the authority of any college,
5 university, or technology center school in this state from taking
6 administrative action against any student for any violation of any
7 provision of this subsection.

8 H. The provisions of this section shall not apply to the
9 following:

10 1. Any peace officer or any person authorized by law to carry a
11 firearm in the course of employment;

12 2. District judges, associate district judges, and special
13 district judges, who are in possession of a valid handgun license
14 issued pursuant to the provisions of the Oklahoma Self-Defense Act
15 and whose names appear on a list maintained by the Administrative
16 Director of the Courts, when acting in the course and scope of
17 employment within the courthouses of this state;

18 3. Private investigators with a firearms authorization when
19 acting in the course and scope of employment;

20 4. ~~Elected officials~~ An elected official of a county, who ~~are~~
21 is in possession of a valid handgun license issued pursuant to the
22 provisions of the Oklahoma Self-Defense Act, may carry a concealed
23 handgun when acting in the performance of his or her duties within
24 the courthouses of the county in which he or she was elected. The

provisions of this paragraph shall not allow the elected county official to carry the handgun into a courtroom;

5. The sheriff of any county may authorize certain employees of the county, who possess a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, to carry a concealed handgun when acting in the course and scope of employment within the courthouse in the county in which the person is employed. Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff from requiring additional instruction or training before granting authorization to carry a concealed handgun within the courthouse. The provisions of this paragraph and of paragraph 6 of this subsection shall not allow the county employee to carry the handgun into a courtroom, sheriff's office, adult or juvenile jail or any other prisoner detention area; ~~and~~

6. The board of county commissioners of any county may authorize certain employees of the county, who possess a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act, to carry a concealed handgun when acting in the course and scope of employment on county annex facilities or grounds surrounding the county courthouse; and

7. A first responder who possesses a valid handgun license issued pursuant to the provisions of the Oklahoma Self-Defense Act who carries a handgun when acting in the course and scope of employment.

1 I. For the purposes of this section, "motor vehicle" means any
2 automobile, truck, minivan, sports utility vehicle, or motorcycle,
3 as defined in Section 1-135 of Title 47 of the Oklahoma Statutes,
4 equipped with a locked accessory container within or affixed to the
5 motorcycle.

6 SECTION 3. This act shall become effective November 1, 2025.

7 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
8 February 19, 2025 - DO PASS
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24